

24SMCV05144 24SMCV05144

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Case Number: 24SMCV05144 Hearing Date: July 16, 2026 Dept: M

CASE NAME: Greenfield v. Waste
Management of California, Inc., et al.

CASE NO.: 24SMCV05144

MOTION: Motion
to Compel Independent Medical Examination

HEARING DATE: 7/16/2026

Legal
Standard

Any party may obtain discovery by means of mental or physical examination of a party to the action if the mental or physical condition of that party is in controversy in the action. (CCP § 2032.020.) In a personal injury action, a defendant is permitted to demand one physical examination of the plaintiff as long as the examination does not include "painful, protracted, or intrusive" procedures and is conducted within 75 miles of the plaintiff's residence. (CCP §2032.220(a).) A defendant must show good cause for leave to conduct a physical examination more than 75 miles from the plaintiff's residence. (CCP §2032.220(a), (b); Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 259.) The demand must specify the date, time, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the physician who will perform the exam. (CCP § 2032.220(c).) Any demand shall be scheduled for a date that is at least 30 days after service of the demand, but the court may shorten this time upon motion. (CCP § 2032.220(d).) Within 20 days after service

of the demand the party to whom the demand is directed shall respond to the demand by a written statement that the party will comply as stated, comply as modified, or refuse. (CCP § 2032.230(a).)

A separate statement is required to compel a "medical examination over objection." (CRC Rule 3.1345(a)(6).)

ANALYSIS

Defendant Waste Management of California Inc. moves for an order compelling Plaintiff Nicole Greenfield to appear in Los Angeles County, California for an Orthopedic Independent Medical Examination ("IME").

Defendant explains that this matter arises from an auto v. pedestrian collision on December 15, 2022, at Capri Apartments, located at 13953 Panay Way, Marina Del Rey, CA. Plaintiff alleges that she suffered injuries from the accident resulting in lower back pain, pain in both feet, left wrist pain, left forearm pain, a miscarriage, L4-S1 disc bulge, bilateral foot pain, back spasms with tenderness, reduced lumbar range of motion, lumbar facet arthropathy, lumbar strain/sprain, myofascial pain, bilateral lower extremity numbness and tingling, reduction in lumbar sensation, Qi and blood stagnation, post-traumatic Bi syndrome, tenderness in the bilateral suboccipital, tenderness in the bilateral trapezius muscles, moderate muscle spasms in the cervical spine, and tenderness in the cervical joints. Plaintiff further claims that her pain is exacerbated by basic activities of daily living such as sitting for extended periods of time, exercise, standing for extended periods of time, getting in and out of bed, and moving from sitting to standing. Plaintiff also claims to have suffered emotional injuries such as increased anxiety, depression and heightened stress levels due to her inability to sit and stand for prolonged periods resulting in an inability to work. To properly investigate and evaluate the nature and extent of her alleged injuries, Defendant must obtain an independent orthopedic evaluation. Defendant has retained Dr. Arthur Kreitenberg, M.D., a board-certified orthopedic surgeon to conduct the examination.

Defendant seeks an IME greater than 75 miles from Plaintiff's residence in East Meadow New York. Defendant argues that good cause exists to order Plaintiff appear in Los Angeles for an

examination, because Plaintiff elected to file this suit in Los Angeles, and thus should have to have the IME in Los Angeles. Defendant also asserts that permitting Dr. Kreitenberg to conduct the IME in Los Angeles will ensure that their preferred expert is more likely to be available at trial. Moreover, Defendant claims that it is not familiar with a qualified orthopedic specialists available near Plaintiff's residence. (JSM Decl., ¶ 5, Ex. 2.) Defendant represents that it is willing to reimburse reasonable travel expenses to and from Los Angeles for purposes of the examination, as required by the statute.

Defendant fails to show good cause for taking the IME greater than 75 miles from Plaintiff's residence. While Defendant contends that Plaintiff chose Los Angeles as the forum for this action, Defendant does not dispute the subject accident occurred in this county, or that any alternative venue would have been proper. Defendants do not make any showing they have attempted to retain an expert within 75 miles of Plaintiff's residence. Defendant does not provide evidence showing that there are no qualified experts in New York City, which is within 75 miles of Plaintiff's residence. Defendant do not explain why a New York orthopedic specialist would be unqualified or would not be available to testify in California for trial. Thus, Defendant does not demonstrate any prejudice requiring them to retain an expert to conduct an IME in New York. Conversely, the record suggests that it will be physically taxing on Plaintiff to travel to Los Angeles for an IME.

Accordingly, the motion is DENIED.